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TAB 7



Board of Education Report

File #: Res-039-23/24, Version: 1

Ms. Ramirez - Supporting Student First Amendment Rights on School Campuses (Res-039-23/24) (Noticed June 18, 2024)

Whereas, The First Amendment of the United States Constitution guarantees the rights and freedoms of all individuals residing in the United States, including but not limited to the rights to assemble peaceably, to freely express oneself, to share information through the press, and to petition the government;

Whereas, The landmark United States Supreme Court case *Tinker v. Des Moines* of 1969 established the legal precedent affirming that students possess the same fundamental civil liberties enshrined in the First Amendment of the Constitution, emphasizing that students do not "shed their constitutional rights to freedom of speech or expression at the schoolhouse gate;"

Whereas, The United States has witnessed a significant surge in student-led protests across college campuses, which have been discouraged, and in many cases met with police brutality, by their institutions, instilling fear and reluctance among students to exercise their constitutionally guaranteed civil liberties; and

Whereas, The Governing Board of the Los Angeles Unified School District has formally accepted a Student Bill of Rights, which states that, "All students have the right to express themselves orally, in writing, and artistically . . . in a courteous and thoughtful manner that is within acceptable legal standards in an educational context without fear of reprisal;" now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District hereby reaffirms its support for the civil liberties of students within the district and extends this commitment to uphold and defend students' civil liberties across school campuses nationwide;

Resolved further, That schools are encouraged to continue teaching courses such as AP United States History, AP US Government and Politics, and Constitutional Law within their classrooms. Furthermore, schools are urged to actively promote increased student participation in initiatives such as the attainment of the State Seal of Civic Engagement;

Resolved further, That the Board formally requests all schools within the District to persistently promote and prominently display the LAUSD Student Bill of Rights on their campuses to remind students of their rights on campus; and, be it finally

Resolved, That the Board hereby calls upon all educational institutions to safeguard the civil liberties of their students and to promote the exercise of these liberties, including freedom of speech, expression, and assembly, as well as the right to petition the government, both within and beyond school campuses, and to never call police to an assembly as long as it is peaceful and nonviolent.